

HOUSE No. 4457

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, September 8, 2025.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 431) of Adrian C. Madaro and Christopher J. Worrell for legislation to further regulate real estate brokers and salespersons, reports recommending that the accompanying bill (House, No. 4457) ought to pass.

For the committee,

TACKEY CHAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to end housing discrimination in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 54 of chapter 13 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the first sentence, and inserting in place
3 thereof the following sentence:- There shall be a board of registration of real estate brokers and
4 salesmen, in this section and in sections fifty-five to fifty-seven, inclusive, called the board, to be
5 appointed by the governor, with the advice and consent of the council, consisting of seven
6 members, citizens of the commonwealth, four of whom shall have been actively engaged in the
7 real estate business as a full-time occupation for at least seven years prior to their appointment
8 and who shall be licensed real estate brokers, one of whom shall either be an expert in fair
9 housing and civil rights or a tenant from a duly recognized tenants' organization in the
10 commonwealth receiving public assistance from a local, state or federal rental voucher program,
11 and two of whom shall be representatives of the public.

12 SECTION 2. Section 55 of said chapter 13, as so appearing, is hereby amended by adding
13 at the end thereof the following paragraph:-

14 The board shall publish, not less than quarterly, an account of newly licensed members.
15 The board shall also publish, not less than quarterly, a summary of complaints filed against
16 licensed members, the actions taken by the board to investigate such complaints, disciplinary
17 hearings, disciplinary actions or revocations of licenses, the reason for such actions by the board,
18 including any findings, in which finding has become final, of discrimination against any classes
19 protected by chapter one hundred and fifty-one B or otherwise protected by any other general or
20 special law or federal statute, and the name of the affected license holder.

21 SECTION 3. Section 87AAA of chapter 112 of the General Laws, as so appearing, is
22 hereby amended by striking out the third sentence, and inserting in place thereof the following:-
23 The board shall, after notice by the Massachusetts commission against discrimination, or any
24 other agency that administers fair housing laws and is certified by the federal Assistant Secretary
25 for Fair Housing and Equal Opportunity pursuant to the federal Fair Housing Act, 42 U.S.C.
26 3601 through 42 U.S.C. 3619, inclusive, that said commission or agency has made a finding,
27 which finding has become final, that a licensed broker or salesman committed an unlawful
28 practice in violation of chapter one hundred and fifty-one B arising out of or in the course of his
29 occupation as a licensed broker or salesman, shall suspend forthwith the license of said broker or
30 salesman for a period of sixty days, and, if the said commission or agency finds that said
31 violation by such licensed broker or salesman occurred within two years of the date of a prior
32 violation of said chapter one hundred and fifty-one B, which finding has been final, it shall so
33 notify the board, and the board shall forthwith suspend the license of such broker or salesman for
34 a period of one hundred and eighty days. The board, after notice by the office of the attorney
35 general that a court in a matter brought by said office has made a finding, which finding has
36 become final, that a licensed broker or salesman committed an unlawful practice in violation of

chapter one hundred and fifty-one B arising out of or in the course of his occupation as a licensed broker or salesman, shall suspend forthwith the license of said broker or salesman for a period of sixty days, provided, however that if the board determines that the violation by such licensed broker or salesman occurred within two years of the date of a prior finding by a court or agency of a violation of chapter one hundred and fifty-one B, which prior finding has become final, it shall forthwith suspend the license of such broker or salesman for a period of one hundred and eighty days. The board shall suspend the license of a broker or salesman for any violation of chapter one hundred and fifty-one B referred to it under this section. Commissions and agencies empowered to make referrals to the board under this section shall make all referrals that qualify under this section and shall not have discretion as to whether to make the referral.

SECTION 4. Section 87SS of said chapter 112 of the General Laws, as so appearing, is hereby amended by striking out the second sentence and inserting in place thereof the following sentence:-

Every individual applicant for a license as a salesman who is required to take an examination therefore shall, as a prerequisite to taking such examination, submit proof satisfactory to the board that he has completed courses in real estate subjects approved by the board, such courses to total 40 classroom hours of instruction and must include at least 4 hours on fair housing law or diversity and inclusion in real estate; provided, however, that applicants having successfully completed a course in real property while enrolled in an accredited law school in the commonwealth may also take such examination.

SECTION 5. Section 87XX 1/2 of said chapter 112 of the General Laws, as so appearing, is hereby amended by striking out the first paragraph and inserting in place thereof the following paragraph:-

Section 87XX1/2. Any person holding a license as a real estate broker or salesman shall, within their renewal period, satisfactorily complete courses or programs of instruction approved by the board; provided that attendance at such courses or programs of instruction shall be no less than six hours but no more than twelve hours as determined by the board. The curriculum contained in such courses or programs shall contain at least six hours of instruction concerning or related to compliance with laws and regulations, including at least two hours on fair housing or diversity and inclusion in real estate, and four hours selected from any of the following subjects: equal employment opportunity; accessibility for the disabled; agency law; environmental issues in real estate; zoning and building codes; real estate appraisal and financing; property tax assessments and valuation; and real estate board regulations. The board shall certify in advance the curriculum forming the basis of such courses or programs which satisfy the provisions of this section.